

AGREEMENT

Between

CITY OF PARK RIDGE

And

INTERNATIONAL UNION OF OPERATING ENGINEERS,

LOCAL 150

May 1, 2023

Through

April 30, 2027

A G R E E M E N T
Between
CITY OF PARK RIDGE
And
INTERNATIONAL UNION OF OPERATING ENGINEERS
LOCAL 150

ARTICLE I
Purpose of Agreement

This Agreement entered into by the City of Park Ridge, Illinois (hereinafter referred to as the "City") and International Union of Operating Engineers, Local 150, AFL-CIO (hereinafter referred to as the "Union") has as its purpose the promotion of harmonious and mutually beneficial working and economic relations between the City and the Union; the establishment of equitable and peaceful procedures for resolution of any misunderstandings or differences which may arise, and to set forth herein the full agreement between the parties concerning the rates of pay, wages, hours of employment and other conditions of employment.

ARTICLE II
Effective Date of Agreement

This Agreement shall be effective from the day following execution and shall remain in effect until April 30, 2027, except as hereinafter provided. It shall continue in effect from year to year thereafter unless notice of termination is given in writing by registered or certified mail by either party not less than sixty (60) nor more than ninety (90) days before the expiration date. Nothing in this paragraph shall preclude commencing negotiations by mutual agreement after January 1st of any year in which this Agreement is due to expire. Notices of termination required by this provision, if by the City, shall be addressed to the Union at 6200 Joliet Road, Countryside, Illinois 60525 and, if by the Union, to the City at the office of the City Manager, 505 Butler Place, Park Ridge, Illinois 60068. Termination notice shall be considered to have been given as of the date shown on the postmark.

Notwithstanding the foregoing, this Agreement shall remain in full force and effect after any expiration date up to such time as negotiations for a new contract are broken off by either party. All provisions of this contract shall continue to remain in full force and effect during said period.

ARTICLE III
Recognition of Union

Pursuant to certification by the Illinois State Labor Relations Board, the City recognizes the Union as the exclusive collective bargaining agent for the purposes of establishing wages, hours and conditions of employment for all full-time employees of the City of Park Ridge in the Public Works Department in the following classifications: Maintenance Worker I, Maintenance Worker II, Building Maintenance Person, Maintenance Worker III, Mechanic I and Mechanic II. Excluded from the bargaining unit are the Water Plant Operator in charge, Pumping Station

Operator, all managerial, supervisory and confidential employees of the Public Works Department and all other employees of the City of Park Ridge.

ARTICLE IV Management Rights

The City possesses the sole right and authority to operate and direct the employees of the City and its various departments in all aspects, including, but not limited to, all rights and authority exercised by the City prior to the execution of this Agreement. These rights include, but are not limited to:

1. The right to determine its mission, policies, and to set forth all standards of service offered to the public;
2. To plan, direct, control and determine the means and places of operations or services to be conducted by the employees of the City;
3. To determine the places, methods, means, number of personnel needed to carry out the City mission;
4. To schedule and assign work;
5. To direct the working forces;
6. To assign overtime;
7. To hire and assign or to transfer employees within the City organization;
8. To promote, suspend, discipline or discharge for just cause (non-probationary employees without cause);
9. To lay-off employees due to lack of work, lack of funds or other lawful reasons as determined by the City;
10. To make, publish and enforce rules and regulations, and to provide the Union with advance notice of new rules or changes thereto, and an opportunity for the Union to discuss the rules with the City prior to their implementation. In the event that any rules and regulations established by the City conflict with an express provision of this Agreement, the provisions of this Agreement shall supersede and be given full effect.
11. To introduce new or improved methods, equipment or facilities;
12. To contract out for goods and services;
13. To establish work, productivity and performance standards, after advance notice to, and an opportunity for discussion with, the Union.

14. To take any and all actions as may be necessary to carry out the mission of the City in situations of civil emergency as may be declared by the Mayor of the City Council or the City Manager. It is the sole discretion of the Mayor or the City Council or City Manager to determine that civil emergency conditions exist, which may include but not be limited to riots, civil disorders, tornado conditions, floods or other similar catastrophes; and
15. The Mayor and City Council have the sole authority to determine the purpose and mission of the City and the amount of budget to be adopted thereto.

ARTICLE V

Wages

A. Wage Schedule.

The parties agree to a 3.0% increase in base wages retroactive to May 1, 2023 on the existing wage scale, for all hours worked or paid for employees in the bargaining unit as of the date of settlement.

The parties agree to a 3.0% increase in base wages effective May 1, 2020 on the attached wage scales.

The parties agree to a 3.0% increase in base wages effective May 1, 2025 on the attached wage scales.

The parties agree to a 2.0% increase in base wages effective May 1, 2026 on the attached wage scales.

Tier 1 and Tier 2 Wage Scales: Employees hired on or after the effective date of this Agreement, which expires on April 30, 2027, shall be paid in accordance with the attached Tier 2 wage scale. Employees hired prior to the effective date of this Agreement will be paid in accordance with the Tier 1 wage scale. When an employee on the Tier 1 wage scale reaches Step I, such employee will move to Step M on the Tier 2 wage scale. In addition, on the effective date of this Agreement, which expires on April 30, 2027, any employee in Step I on the Tier 1 wage scale will be moved to Step M of the Tier 2 wage scale.

The City reserves the right to determine the initial placement of an experienced new hire on the wage scale, with the understanding that placement above the initial step shall not affect a new hire's probationary period, nor shall it exceed the step of any current employee in the step system in the same classification.

An employee in the classification of Maintenance Worker I shall be moved to the classification of Maintenance Worker II after 5 years of service as a Maintenance Worker I, or earlier at the City's sole discretion.

An employee in the classification of Mechanic I shall be moved to the classification of Mechanic II after 5 years of service as a Mechanic I, or earlier at the City's sole discretion.

B. Effect of Merit Rating System.

Advancement to higher range steps are subject to a merit rating system in accordance with the City of Park Ridge employee manual.

C. Calculation of Bi-weekly Pay.

The salaries and wages of employees shall be paid in bi-weekly pay periods, with paydays falling on Friday. For purposes of computing bi-weekly pay, the annual salaries will be divided by 26.0.

D. Acting Crew Leader Pay.

If a Maintenance I or II is specifically assigned by the City to serve as an Acting Crew Leader of a work crew consisting of three (3) or more employees, then such employee shall receive an Acting Crew Leader pay differential of thirty-five dollars (\$35.00) for each workday in which the person works in such acting assignment for three (3) or more hours. An Acting Crew Leader will normally be selected from the Division from which the work is being performed.

Maintenance Worker III's are ineligible for Acting Crew Leader Pay and can lead a crew in any Division. No employee shall receive compensation under this Section if the employee is eligible to receive compensation under Article VI, Section O (Acting Foreman).

ARTICLE VI
Benefits

A. Longevity.

Longevity will be paid according to the following schedule for employees hired prior to the effective date of the Agreement expiring April 30, 2027. This section does not apply to employees hired after the effective date of the Agreement expiring April 30, 2027 who are on the Tier 2 wage scale:

Longevity Step	Satisfactory Completion of Years of Continuous Service	Annual Longevity Payment Amount
G Step	10 Years	\$1050
H Step	15 Years	\$1450
I Step	20 Years	\$1650

Longevity pay shall be effective on the anniversary date of employment according to the continuous length of service specified, subject to satisfactory merit ratings. It should be pointed out that longevity pay is not necessarily to be considered automatic upon completion of the necessary years.

B. Standby Pay.

Employees scheduled for one week of standby to perform salting will receive \$175.00 week standby pay whether or not the employee is called out at any time during the week to perform salting; provided, however, that standby pay is not payable if an employee on standby does not respond to a call out. The Standby Schedule shall be posted no more than one week in advance.

C. Incentive Pay.

As an incentive for personnel responsible for vehicle and equipment maintenance to improve their skills and productivity, the City agrees to compensate employees who successfully complete the entire battery of tests leading to designation of either "Certified General Automobile Mechanic" or "Certified General Truck Mechanic" (said certification tests administered by the National Institute for Automotive Service Excellence) the annual sum of \$700 for each of the certifications received. Said sums shall be pro-rated from the date of official notice of passing and will be added to the bi-weekly paycheck.

In addition, the expense of taking the test, not to exceed \$50, shall be refunded to the employee upon successful completion of the battery of tests.

D. Life Insurance.

The City will provide employees a group term life insurance policy in an amount equal to the employee's annual base pay, not to exceed \$300,000, the premium for which will be paid by the City. The City shall make available supplemental term life insurance at group premium rates to be paid for by the employee.

E. Medical Insurance: Employees.

1. Basic Provisions. Except as otherwise provided herein, the comprehensive major medical plans which are in effect on the effective date of this Agreement shall be continued in effect. If the City makes any future plan changes, the plan changes will be the same as the plan changes for all management employees in the City of Park Ridge. The Union and employees will receive 30 days' advance notice in writing. The master insurance documents are controlling as to benefits and eligibility. The statements herein are only descriptive.
2. Premium Costs. Employees shall pay 13% of the premium for the applicable plan and level of coverage selected.
3. Section 125 Plan. Subject to applicable law, the City will continue a plan under Section 125 of the Internal Revenue Code covering employee contributions to medical insurance.

F. Medical Insurance: Retirees.

Eligible retiring employees may remain covered by the City's group medical insurance plan in accordance with and subject to the provisions of the Illinois Municipal Employee Continuation Privilege law, (215 ILCS 5/367j).

G. Dental Insurance.

Effective with the first full payroll period following execution of this contract, the dental plan and premium contributions for bargaining unit employees shall be the same as for non-represented full time City employees, as the same may be changed from time to time by the City.

H. Sick Leave.

Employees shall accumulate sick leave with pay at the rate of one day per month for each month worked accumulative to a maximum of 240 working days. Sick leave shall not be considered a benefit to be used at the employee's discretion but shall be allowed only in the following instances:

1. sickness of the employee;
2. employee's physical and dental examination only if it is impossible to schedule such exam on employee's own time;
3. to care for a sick spouse, dependent or member of the employee's immediate household.

Sick leave is not to be used for matters of personal convenience such as (but not limited to) weddings, graduations, personal business or family medical appointments. Violation of these provisions shall be grounds for disciplinary action. The City may use any reasonable measures to verify proper use of sick leave including, but not limited to: (1) requiring employee to submit medical certificates; (2) requiring employee to submit to physical exam at City's expense; and (3) requiring employee to submit full details in writing explaining his absence.

An employee who is sick is expected to be confined to his place of residence or hospitalized unless he is en route to or from or located at the office of a physician or unless the employee has received permission from his immediate supervisor to be absent from his place of residence, which permission shall not be unreasonably withheld.

The Union agrees to the sick pay policy as per City Employee Manual, as the same may be changed from time to time by the City. An employee shall not be charged with a sick leave occurrence for a pre-approved doctor visit or a documented pre-approved series of doctor visits.

All employee medical information is confidential. Human Resources Department is the only department that shall accumulate, hold and review such information.

I. Sick Leave at Retirement.

Employees who retire or resign, in good standing, shall upon separate from service receive compensation for 35 percent of all sick leave days accrued and unused in excess of 120 days up to 180 days, payable at the employee's regular straight-time rate of pay. (Example: 180 days minus 120 = 60 days; 60 days times 35% = 21 days' pay).

J. Time Off.

1. Leave Time. For administrative purposes vacation time and floating holidays shall be considered "leave time." Leave time shall be earned and will accrue from the date of employment. Each employee hired prior to May 1, 2012 shall be entitled to annual leave time in accordance with the following schedule:

Years of Continuous Service	Number of Working Days of Leave Time	(37.5 Hour) Accrual Rate Per Day Period
1	14	4.038
2	14	4.038
3	14	4.038
4	14	4.038
5	14	4.038
6	15	4.327
7	16	4.615
8	17	4.904
9	18	5.192
10	19	5.481
11	20	5.769
12	21	6.058
13	22	6.346
14	23	6.635
15	29	8.365

Each employee hired on or after May 1, 2012 shall be entitled to annual leave time in accordance with the following schedule:

Years of Continuous Service	Number of Working Days of Leave Time	(37.5 Hour) Accrual Rate Per Day Period
1	14	4.038
2	14	4.038
3	14	4.038
4	14	4.038
5	14	4.038
6	15	4.327
7	16	4.615
8	17	4.904
9	18	5.192
10	19	5.481
11	20	5.769

When an employee's service with the City is terminated in good standing, he shall receive compensation for accrued leave time; provided, however, that if such termination is by voluntary resignation which has not been requested by the City, the employee will give the City at least two weeks' notice or compensation for unused leave may be denied.

The department head shall establish a leave schedule for employees sufficiently early each year so that all employees can plan their own schedule and so that departmental supervisors can program the work of the department so as to provide a minimum of disruption of the work of the department. For purposes of scheduling leave, a list of employees will be prepared by the City assigning employees into one of four groups: (1) Street; (2) Water and Sewer; (3) Garage; or (4) Grounds. At any given time, no more than four (4) employees shall be scheduled for leave from the Street or Water and Sewer groups and no more than one employee shall be scheduled for leave from the Garage or Grounds group, except that the City may permit additional employee(s) to take an additional leave day, subject to advance approval by the Director of Public Works or his designee.

Leave time may be taken in one-day increments, half-day increments or one to 3 hour blocks, but it is understood that the decision that the decision to grant leave rests solely with the City and that it may be difficult at times for operational reasons to grant one-half day leaves.

Employees who earn up to 20 leave days per year may accrue up to a maximum of 35 leave days, employees who earn more than 20 leave days per year may accrue up to a maximum of 45 leave days.

2. Holidays. The following eight days are holidays for employees with pay: New Year's Day, Memorial Day, Independence Day (July 4), Labor Day, Thanksgiving, Day after Thanksgiving, Christmas Eve and Christmas.

Holidays falling on a weekend shall be celebrated on the previous Friday or the succeeding Monday by direction of the City Manager. Any employee scheduled to work the day before or the day after a holiday must work those days in order to receive holiday pay (unless absence is due to an approved FMLA leave, approved vacation day, or sick leave if an acceptable medical certification is provided to the City).

K. Funeral Leave.

- a) When it is necessary for an employee to be absent for purposes of funeral arrangements and/or attendance at a funeral for a member of their immediate family, provisions are made to cover such absences without employee loss of wages or salary.
- b) Normally, such excused absences are to be limited to three (3) consecutive days for full-time employees and up to twelve (12) hours over three consecutive days for part-time employees. Additional time off may be granted upon prior approval of the department head.
- c) Immediate family is defined as: spouse, parent, step-parent, child, step child, grandchild, grandparent, mother-in-law, father-in-law, brother, sister, brother-in-law or sister-in-law.
- d) One paid funeral leave day may be taken for attendance at the funeral of an aunt, uncle, first cousin, niece or nephew.
- e) Paid leave for funeral attendance for non-immediate family members not listed above will be reviewed by the Department Head and Human Resources on a case-by-case basis and is only approved for unique circumstances.
- f) Vacation time must be utilized for any bereavement leaves that are not permissible under this policy. If an employee has no vacation time available, the employee may use compensatory time or be granted bereavement leave without pay.
- g) Please note that paid time off is not provided in addition to the up to 10 days of unpaid FBLA leave noted below. Rather, one or three of the unpaid FBLA leave days, to the extent the employee is eligible for FBLA leave, and depending on the employee's relationship to the deceased, will be paid under this portion of the policy.

L. Illinois Family Bereavement Leave Act (FBLA)

- a) Pursuant to the Illinois Family Bereavement Leave Act (FBLA), eligible employees who have worked 1,250 hours during the preceding 12-month period of a request for leave are entitled to unpaid bereavement leave up to a maximum of 10 workdays. Total leave for an employee during an instance of bereavement leave will be a maximum of 10 workdays of leave, whether paid or unpaid.

- b) The FBLA available to eligible employees for the death of a child, spouse, domestic partner, sibling, grandparent and stepparent in order to:
 - a. Attend the funeral or alternative to a funeral;
 - b. Make arrangements necessitated by the death of a family member;
 - c. Grieve the death of a covered family member.
- c) Employees may also utilize this policy to be absent from work due to:
 - a. Miscarriage;
 - b. An unsuccessful round of intrauterine insemination or of an assisted reproductive technology procedure;
 - c. A failed adoption match or an adoption that is not finalized because it is contested by another party;
 - d. A failed surrogacy agreement;
 - e. A diagnosis that negatively impacts pregnancy or fertility;
 - f. A still birth.
- d) Employees must submit an FBLA certification form with 48 hours of advance notice of the intention to take bereavement leave along with any reasonable documentation to certify that the employee has experienced an event covered by the Act, including but not limited to: death certification, published obituaries, healthcare practitioner documentation, documentation from an adoption or surrogacy organization.
- e) Any leave taken under the FBLA must be completed within 60 days after the date on which the employee receives notice of the qualifying event.
- f) Paid bereavement leave is not eligible for all reasons listed under the Illinois Family Bereavement Act and is only for reasons listed under the paid leave policy.
- g) In addition, an employee eligible for leave under this policy is defined as an employee eligible to take leave under the Family and Medical Leave Act (FMLA) (i.e. who have worked for the City in the prior 12-months and performed at least 1,250 hours of service with the City). This policy does not expand any available leave employees may be entitled to under the FMLA. Thus, leave under this policy cannot be taken in addition to unpaid leave permitted under the FMLA, and may not exceed unpaid leave time allowed under the FMLA.
- h) Leave under this policy also operates coextensively with any paid bereavement leave already provided by the City. However, an employee may use available paid benefit time to cover their absence, including paid time off, vacation, sick and compensatory time.

M. Uniforms.

The City will provide, upon request, rental uniforms at no cost to the employee, which shall include a City shirt and trousers.

1. Employees shall wear the uniform shirt or City issued T-Shirt at all times.
2. Each work day, an employee shall report to work wearing a City issued uniform shirt or T-Shirt. Employees who elect not to receive a rental uniform shall turn in all items, other than the shirts, and shall wear their own clothes. Their own clothes shall meet the supervisor's approval in regard to suitability.
3. In addition to the foregoing, each new fiscal year, the City will provide five (5) City imprinted T shirts to each bargaining unit employee for use while working.

N. Safety Shoe/Clothing Allowance.

Each fiscal year, each employee will be allowed to purchase work clothing and/or safety shoes or boots, winter gear, etc., in an amount up to \$400 through the quartermaster system currently established and administered by the City, which may be modified by mutual agreement. An employee may purchase one (1) pair of approved work boots per fiscal year, the cost of which shall be deducted from the employee's \$400 quartermaster allowance and reimbursed to the employee, funds permitting.

All employees shall wear safety shoes during working hours, including all call out situations. Employees are required to maintain their safety shoes in a reasonable fashion.

O. Tool Allowance.

Each fiscal year, there shall be an annual mechanic tool allowance of up to \$775.00 per mechanic. This amount will be paid once during the fiscal year when the employee supplies receipts for up to \$775.00 for tools purchased by the employee during said fiscal year.

P. Commercial Driver's License.

The City shall reimburse any employee for the fee of obtaining a required commercial driver's license, and any job related license endorsements, as specified by the City. The employee must provide a receipt in order to receive payment. If an employee does not obtain, or loses, the driver's license (or endorsements) which the City determines is appropriate for fulfilling job requirements, the City at its sole discretion, will place the employee in a classification where a driver's license is not required or will place the employee on unpaid layoff status for up to one year. If the employee does not return to work after one year, the employee's service terminates. New hires shall obtain his/her commercial driver's license within twelve (12) months from date of hire, unless otherwise authorized by the Director of Public Works in a specific instance, provided that the employee will automatically be subject to dismissal for failure to obtain the CDL during any extension of the 12 month period, and no grievance shall be filed or entertained in connection with any such dismissal.

Q. Acting Foreman.

Following the execution of this Agreement, when an employee is designated by the City to serve as acting supervisor for one-half day or more, the employee shall receive a pay differential of \$40 per day. If a Maintenance Worker III is assigned as Acting Foreman for a weekend, then such employee shall receive \$40 per day on the weekend.

R. Family and Medical Leave.

The City agrees to comply with the Family and Medical Leave Act of 1993 (FMLA) and the rules and regulations issued in conjunction therewith. Accordingly, any City policies, orders, rules or regulations applicable to bargaining unit employees, as the same may be changed from time to time by the City, shall be in accordance with what is legally permissible under the FMLA.

S. Jury Duty Leave

- a) All employees shall be permitted necessary time off from work upon receipt of an appropriate court order directing them to report for jury duty. The employee's supervisor and Human Resources must be advised of this order as soon as possible.
- b) Full-time employees will be paid their normal salary while on jury duty, up to a maximum thirty (30) days. The employee shall submit their jury duty check to the City. The employee will receive pay from the City for normally scheduled work days/shifts only.
- c) If the period of jury duty is less than a normally scheduled shift for the employee, the employee will check in with their supervisor to determine if the employee should come to work for the remainder of their normally scheduled shift.

T. Protective Clothing and Safety Gear

The Employer shall provide the following items of protective clothing and safety gear and replacement thereof when determined necessary: hard hat, standard lightweight work gloves, latex gloves, safety glasses, safety vest, N-95 mask, hearing protection, knit gloves (for concrete crews), respirator mask (if needed), and Tyvek suit (if needed). Items not provided by the Employer include boots, jackets, cold weather gear, rain gear, etc.

ARTICLE VII
Hours of Work and Overtime

A. Work Hours.

- 1. The normal hours of work shall be 37-1/2 hours per week and 7-1/2 hours per day. Unless otherwise scheduled by the department head or supervisor, the normal work hours for employees. When an employee is scheduled for a normal workday and

reports for work at the scheduled starting time, the employee shall be guaranteed 7-1/2 hours of continuous work on that day.

2. Where the requirements of the job dictate that employees work through their lunch period, employees shall be allowed to leave work thirty (30) minutes early, or shall be compensated at the appropriate rate of overtime.
3. Except for emergency situations involving an attempt to call-out all or substantially all bargaining unit employees, the City will attempt to fill its requirements for emergency call-outs from employees who are not on leave time. After a reasonable attempt has been made to reach such employees, the City will then attempt to call out employees on leave time.
4. When employees are called out at Midnight or after, the employee will typically have the opportunity to complete his normal work schedule for that day.
5. The employee working on any job which extends into overtime shall be given priority consideration to work such overtime.

B. Overtime Compensation.

An employee who works more than 37-1/2 hours in a week shall be entitled to compensation at the rate of time and one-half for such hours, except that an employee who works either on a Sunday or a holiday shall be paid at a double-time rate with a three-hour minimum. Premium pay for a holiday shall be for the actual day of the holiday, not the day of observance. In computing weekly overtime, hours paid but not worked shall be considered hours worked for the purpose of computing overtime.

An employee who is required to work between midnight and his regularly scheduled workday starting time will be paid at the rate of time and one-half for such hours of work. (E.g., if an employee's regular start time is 7:00 a.m., and he works from midnight to 7:00 a.m., then such employee shall be paid at time and one half for the hours worked from midnight to 7:00 a.m., but only in an emergency situation.) An employee who is scheduled in advance to perform non-emergency work between midnight and his or her regularly scheduled workday starting time will be paid straight pay.

Compensation shall not be paid nor compensatory time taken more than once for the same hours under any provision of this Agreement. There shall be no pyramiding of overtime rates.

An employee who is called out on a day other than a Sunday or a holiday shall be entitled to receive overtime compensation at the rate of time and one-half (1-1/2) for a minimum of four (4) hours unless the period of the call-back immediately precedes or follows a regularly scheduled work period, in which case the employee will be paid for the time actually worked at overtime rates. Should an employee be recalled to work during the 4 hour period the employee is receiving pay under this paragraph, no additional 4 hour minimum shall be due.

Notwithstanding anything to the contrary in this subsection, prescheduled overtime, like for the farmer's market or other similar special recurring event, will be paid at time and one-half with a two-hour minimum. This does not apply to weather related events, or excavation events.

During the term of this Agreement, the City will maintain an overtime call out system by which employees classified as Maintenance Worker III shall receive call outs on a rotating basis, provided that the City shall have no obligation to interrupt work in progress or emergency work. The supervisor shall maintain the rotating list that shall be followed by the MW IIIs. If a Maintenance Worker III calls in a Maintenance Worker I or II, then such employees shall likewise receive call outs on a rotating basis within job division. This does not apply to snow and salt operations. If an employee demonstrates a violation of this paragraph, the sole remedy shall be to provide such employee with first preference to perform available overtime the employee is qualified to perform in the future, until any imbalance is corrected.

C. Compensatory Time.

Any employee entitled to overtime pay under the provisions of this Agreement (either time and one-half or double-time) may elect "compensatory time" in lieu of overtime pay. The maximum amount of compensatory time which an employee may accrue during a fiscal year shall be sixty (60) hours. An employee who has accrued compensatory time and wishes to take this time off must submit advance request to the City pursuant to reasonable administrative rules established by the City. Compensatory time must be used in increments of four (4) hours or more. The City will approve requests for compensatory time off, consistent with the operational needs which the City in its judgment determines are necessary or proper. Persons who terminate employment with the City with unused, accrued compensatory time shall be paid the cash value of this time at the hourly rate of the employee in effect at the time of termination of employment.

ARTICLE VIII
Continuation of Service

No employee covered by this Agreement shall engage in, induce or encourage any strike, work stoppage, slowdown or withholding of services. The Union agrees that neither it nor any of its officers or agents or members will call, institute, authorize, participate in, sanction or ratify any strike, work stoppage, slowdown or withholding of services during the term of this Agreement as a result of a labor dispute with the City or for any reason whatsoever.

The City will not lock out any employees during the term of this Agreement as a result of a labor dispute with the Union or for any reason whatsoever.

All employees who hold a position of officer or other position of authority in the Union, occupy a position of special trust and responsibility in maintaining and bringing about compliance with this provision, including the responsibility to remain at work during any interruption which may be initiated by other employees and to encourage employees violating this paragraph to return to work.

ARTICLE IX

Dues Check-Off

A. Dues Deductions

During the term of this Agreement, the City will deduct from each employee's paycheck once each pay period the uniform, regular Union dues from each employee in the bargaining unit who has filed with the City a lawfully written authorization form. An employee may revoke his/her dues checkoff authorization at any time upon thirty (30) days written notice to the City. The City will send the dues collected under this Section to the Union each month.

The actual dues amount to be deducted, as determined by the union, shall be uniform in each classification and step in order to cease the City's burden of administering this provision. Provided, however, the Union may specify a second, lower level of dues contribution, as determined by the Union, which employees may voluntarily elect and revoke in the same manner as regular union dues. The Union may change the fixed uniform amount once each calendar year during the life of this Agreement by giving the City at least thirty (30) days' notice of any such change in the amount of the uniform dues to be deducted.

If an employee has no earning or insufficient earnings to cover the amount of the dues deduction, the Union shall be responsible for collection of dues. The Union agrees to refund to the employee any amount paid to the Union in error on account of this dues deduction provision.

B. Indemnification

The Union shall indemnify and hold harmless the City, its elected representatives, officers, administrators, agents and employees from and against any and all claims, demands, actions, complaints, suits or other forms of liability (monetary or otherwise) that arise out of or by reason of any action taken or not taken by the City for the purpose of complying with the provisions of this Article, or in reliance on any written checkoff authorization furnished under any provisions of this Article.

C. Credit Union Check-Off.

Employees will be permitted to participate in the Northwest Municipal Credit Union and upon receiving authorization signed by a participating employee the City agrees to deduct from the employee's paycheck once each month the amount authorized; said deduction shall occur at the same time as the dues check off deduction occurs. Monthly statements of the amount due shall be supplied by the Credit Union to the City and a check for that amount shall be remitted by the City.

ARTICLE X
Grievance Procedure and Representation Matters

A. Grievance and Arbitration.

It is mutually desirable and hereby agreed that all grievances shall be handled in accordance with the following steps. A grievance shall be defined as a complaint by an employee or the Union filed under and during the term of this Agreement alleging the violation of an express provision of this Agreement, which is filed in a timely fashion. Any time period provided for under the steps in the grievance procedure may be mutually extended in writing.

Step 1: The employee, with or without a Union representative, may take up the grievance with the employee's immediate supervisor within fifteen (15) calendar days of its occurrence. The supervisor shall then attempt to adjust the matter and shall respond within ten (10) calendar days after such discussion.

Step 2: If not adjusted in Step 1, the grievance shall be reduced in writing and presented by the Union to the Department Head within fifteen (15) calendar days following supervisor's answer to Step 1. The Department Head shall attempt to adjust the grievance as soon as possible, but shall give his answer in writing to the Union within fifteen (15) calendar days after receipt of the grievance.

Step 3: If not satisfactorily adjusted in Step 2, the grievance shall be submitted to the City Manager within fifteen (15) calendar days of the answer in Step 2. A meeting shall be held at a mutually agreeable time and place with the City Manager or his representative. If the grievance is settled as a result of such a meeting, the settlement shall be reduced to writing and signed by the parties. If no settlement is reached, the City Manager or his designated representative shall give the Union the Employer's answer within fifteen (15) calendar days following their meeting.

Step 4: If the grievance is still unsettled, it may be referred for arbitration by written request made within fifteen (15) calendar days of the Employer's answer in Step 3. Arbitration shall proceed in the following manner:

1. The parties shall attempt to select an arbitrator. If the parties are unable to agree upon an arbitrator, the parties shall jointly request a panel from the Federal Mediation and Conciliation Service, from which panel the parties shall alternatively strike names until only one name shall remain.
2. The arbitrator shall hold a hearing where each party may present evidence and file post-hearing briefs. The hearing shall only be open to all parties in interest.
3. The arbitrator shall issue his decision not later than thirty (30) calendar days from the date of closing of the hearing or from the date of filing post-hearing briefs.
4. The decision of the arbitrator shall be in writing and shall set forth the findings of fact, reasoning and conclusions on the issues submitted.

5. The decision of the arbitrator shall be final and binding on the City, the Union and the employee or employees involved.
6. The expenses of the arbitration, including the arbitrator's fee, shall be shared equally by the parties. Each party shall bear the expense of their own presentation and witnesses.
7. The arbitrator may interpret the Agreement but shall have no right to ignore, add to, take from, or modify any of the provisions of this Agreement.

B. Discipline.

Disciplinary actions or measures shall include only the following: oral reprimand; written reprimand; suspension; and discharge. The City agrees in principle to the tenets of progressive discipline for non-probationary employees; however, nothing in this Agreement limits the City's right to summarily discharge or suspend an employee without warning for serious offenses.

The City shall not discharge, suspend or issue a written reprimand to any non-probationary employee without just cause. The procedure set forth in Article X (Grievance Procedure) shall be the sole and exclusive procedure for resolving any grievance or dispute involving an alleged violation of this section. The procedure described herein is in lieu of any appeal to the City Civil Service Commission.

C. Labor-Management Committee.

Upon request by the Union or the City, a Labor Management Committee shall be held to discuss matters of mutual concern that do not involve negotiations. Attendance at Labor Management Committee meetings shall be limited to two (2) bargaining unit employees designated by the Union, and two (2) persons designated by the City, unless otherwise mutually agreed upon by the parties. The party requesting the meeting shall submit a written agenda of the items it wishes to discuss at least five (5) working days prior to the date of the meeting, unless otherwise mutually agreed upon by the parties. This Section shall not be applicable to any matter that is being processed pursuant to the grievance procedure set forth in this Agreement. The date, time and place for Labor Management Committee meetings shall be mutually agreed upon by the Union and the City. If such a meeting is held during the regular working hours of any bargaining unit employee on the Committee, that employee shall not lose any compensation for attending the meeting. Otherwise, attendance at such meeting shall not be considered as time worked for the employees involved.

D. Union Business.

Employees shall not engage in Union activity during working hours, except that a steward may request to use short periods of time to investigate a grievance if advance permission is requested and approved by the supervisor.

Notwithstanding the foregoing, the City shall provide to the Union, including its agents and employees, reasonable access to employees in the bargaining unit. This access shall be at all times conducted in a manner so as not to impede normal operations. This access includes the right to meet with one or more employees on the employer's premises during the work day to investigate and discuss grievances and workplace-related complaints without charge to pay or leave time of employees. Representatives of the Union shall have the right to conduct worksite meetings during lunch and other non-work breaks, and before and after the workday (provided advance permission is granted by the City), to discuss collective bargaining negotiations, the administration of the collective bargaining agreement, other matters related to the duties of the exclusive representative, and internal matters involving the governance or business of the exclusive representative, without charge to pay or leave time of the employees. Provided, however, any non-employee Union representative shall provide advance notice to the Director or the Director's designee before entering the worksite.

Within 10 calendar days from the date of hire of a bargaining unit employees, the City shall provide to the Union in an electronic file or other mutually agreed format, the following information about the new employee: the employee's name, job title, worksite location, home address, work telephone numbers, and any home and personal cellular telephone on file with the employer, date of hire, work email address and any personal email address on file with the employer. The Union shall have the right to meet with newly hired employees, without charge to pay or leave time of the employee, on the employer's premises or at a location mutually agreed to by the employer and the exclusive representative for up to one hour within the first two weeks of employment in the bargaining unit or at a later date and time if mutually agreed upon by the City and the Union.

ARTICLE XI

Seniority

A. Definition of Seniority.

Where this Article calls for the application of seniority, seniority shall be defined as an employee's length of continuous service with the City since the employee's last date of hire. Where employees have the same date of hire, the seniority position shall be determined by the date and time of employment application. The definition of seniority under this Article shall determine eligibility for employee benefits such as vacation, sick leave or longevity pay.

B. Seniority List.

The City shall prepare and maintain a current seniority roster for employees in the bargaining unit. The seniority roster will list each employee in seniority order. A copy will be supplied to the Union.

C. Probationary Period.

The probationary period for new hires and promotions shall be twelve (12) months. In the event a newly hired probationary employee is disciplined, suspended or terminated, no grievance may be raised concerning this action. In the event an employee is promoted, the City may demote such employee during the first 12 months to his or her former position and pay rate, and such decision shall not be subject to the grievance procedure.

D. Termination of Seniority.

Seniority and the employment relationship shall be terminated when an employee:

1. quits; or
2. is discharged for just cause (probationary employee without cause); or
3. is laid off and fails to report for work within two weeks of having been recalled, so long as the employee advises the City within three (3) working days of receipt of recall notice that the employee intends to return to work; or
4. is laid off for a period equivalent to the employee's seniority, but not to exceed two years; or
5. retires.

E. Layoff.

In the event of a layoff, employees shall be laid off in reverse order of seniority, excluding mechanics. The City will give thirty (30) days notice to the Union and the affected employee or employees to be laid off. In the event of layoff, the Union will have the opportunity to meet with the City and discuss alternatives before the City actually lays off any employees.

F. Recall.

Before new employees are hired, the City will recall laid off employees in the inverse order of layoff that were laid off during the prior 24 months, so long as the employee is qualified or can become qualified to perform the available work. In the event of recall, an employee shall have seniority rights restored.

ARTICLE XII
General

A. Conflict With Federal And State Laws.

In the event any Article, section or portion of this Agreement should be held invalid and unenforceable by any board, agency or court of competent jurisdiction or by reason of any

subsequently enacted legislation, such decision or legislation shall apply only to the specific Article, section or portion thereof specifically specified in the board, agency or court decision or subsequent litigation, and the remaining parts or portions of this Agreement shall remain in full force and effect. In the event a provision of this Agreement is deemed invalid and unenforceable, the parties shall meet to negotiate a replacement provision, upon reasonable request of either party.

B. Personnel Records.

An employee shall be provided with access to his or her personnel record and all other rights in accordance with the Illinois Personnel Record Review Act, as amended, 820 ILCS 40/0.01.

C. GPS

Nothing herein shall be construed as a limitation upon the City's right to utilize GPS location devices in City vehicles, property and/or other equipment used by employees, for any legitimate purpose, including but not limited to safety and productivity.

D. Safety

In order to maintain safe working conditions, the City will comply with all laws applicable to its operations concerning the safety of employees covered by this Agreement. Employees are also required to comply with all safety rules and directives as they may be modified from time to time. Employees who reasonably and justifiably believe that their safety and health are in danger due to an alleged unsafe working condition, equipment or vehicle, shall immediately inform their supervisor. The Department Head or their designee is responsible to determine what action, if any, should be taken, including without limitation whether or not the job assignment should be discontinued.

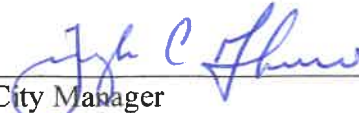
ARTICLE XIII
Entire Agreement

This Agreement, upon ratification, supersedes all prior practices and agreements, whether written or oral, unless expressly stated to the contrary herein, and constitutes the complete and entire agreement between the parties, and concludes collective bargaining for its term.

The City and the Union, for the duration of this Agreement, each voluntarily and unqualifiedly waives the right, and each agrees that the other shall not be obligated, to bargain collectively with respect to any such or matter referred to or covered in this Agreement, including the impact of the City's exercise of its rights as set forth herein on wages, hours or terms and conditions of employment. In so agreeing, the parties acknowledge that, during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining, and that the understandings and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement.

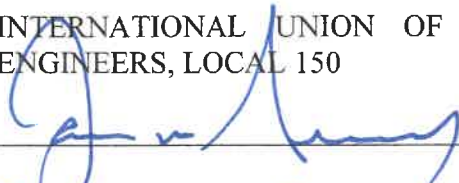
IN WITNESS WHEREOF the parties hereunto have set their hands and seals this _____ day of _____, 2024.

CITY OF PARK RIDGE:



City Manager

INTERNATIONAL UNION OF OPERATING
ENGINEERS, LOCAL 150



Deanna M. Distasio

Tier I Schedule

Maintenance Worker I

	Step								
	A	B	C	D	E	F	G	H	I
2023	\$ 57,529	\$ 60,402	\$ 63,423	\$ 66,596	\$ 69,926	\$ 73,423	\$ 74,473	\$ 74,873	\$ 75,073
2024	\$ 59,254	\$ 62,214	\$ 65,326	\$ 68,594	\$ 72,023	\$ 75,625	\$ 76,675	\$ 77,075	\$ 77,275
2025	\$ 61,032	\$ 64,081	\$ 67,286	\$ 70,651	\$ 74,184	\$ 77,894	\$ 78,944	\$ 79,344	\$ 79,544
2026	\$ 62,253	\$ 65,362	\$ 68,631	\$ 72,064	\$ 75,668	\$ 79,452	\$ 80,502	\$ 80,902	\$ 81,102

Maintenance Worker II

	Step								
	A	B	C	D	E	F	G	H	I
2023	\$ 63,421	\$ 67,625	\$ 69,923	\$ 73,420	\$ 77,091	\$ 80,945	\$ 81,995	\$ 82,395	\$ 82,595
2024	\$ 65,324	\$ 69,653	\$ 72,020	\$ 75,623	\$ 79,404	\$ 83,373	\$ 84,423	\$ 84,823	\$ 85,023
2025	\$ 67,284	\$ 71,743	\$ 74,181	\$ 77,892	\$ 81,786	\$ 85,874	\$ 86,924	\$ 87,324	\$ 87,524
2026	\$ 68,629	\$ 73,178	\$ 75,664	\$ 79,450	\$ 83,422	\$ 87,592	\$ 88,642	\$ 89,042	\$ 89,242

Maintenance Worker III / Mechanic I

	Step								
	A	B	C	D	E	F	G	H	I
2023	\$ 71,623	\$ 75,177	\$ 78,963	\$ 82,910	\$ 87,055	\$ 91,408	\$ 92,458	\$ 92,858	\$ 93,058
2024	\$ 73,772	\$ 77,432	\$ 81,332	\$ 85,397	\$ 89,666	\$ 94,151	\$ 95,201	\$ 95,601	\$ 95,801
2025	\$ 75,885	\$ 79,755	\$ 83,772	\$ 87,959	\$ 92,356	\$ 96,975	\$ 98,025	\$ 98,425	\$ 98,625
2026	\$ 77,505	\$ 81,350	\$ 85,447	\$ 89,718	\$ 94,203	\$ 98,915	\$ 99,965	\$ 100,365	\$ 100,565

Tier I Schedule

Mechanic II

	Step								
	A	B	C	D	E	F	G	H	I
2023	\$ 75,205	\$ 78,967	\$ 82,915	\$ 87,060	\$ 91,410	\$ 95,984	\$ 97,034	\$ 97,434	\$ 97,634
2024	\$ 77,462	\$ 81,336	\$ 85,402	\$ 89,672	\$ 94,153	\$ 98,863	\$ 99,913	\$ 100,313	\$ 100,513
2025	\$ 79,785	\$ 83,776	\$ 87,965	\$ 92,362	\$ 96,977	\$ 101,829	\$ 102,879	\$ 103,279	\$ 103,479
2026	\$ 81,381	\$ 85,452	\$ 89,724	\$ 94,209	\$ 98,917	\$ 103,866	\$ 104,916	\$ 105,316	\$ 105,516

Building Maintenance

	Step								
	A	B	C	D	E	F	G	H	I
2023	\$ 69,922	\$ 73,416	\$ 77,086	\$ 81,015	\$ 84,988	\$ 89,237	\$ 90,287	\$ 90,687	\$ 90,887
2024	\$ 72,019	\$ 75,619	\$ 79,399	\$ 83,445	\$ 87,538	\$ 91,914	\$ 92,964	\$ 93,364	\$ 93,564
2025	\$ 74,180	\$ 77,887	\$ 81,781	\$ 85,948	\$ 90,164	\$ 94,672	\$ 95,722	\$ 96,122	\$ 96,322
2026	\$ 75,663	\$ 79,445	\$ 83,416	\$ 87,667	\$ 91,967	\$ 96,565	\$ 97,615	\$ 98,015	\$ 98,215

Tier II Schedule

Maintenance Worker I

	Step												
	A	B	C	D	E	F	G	H	I	J	K	L	M
	Year 1	Year 2	Year 3	Year 4	Year 5	Year 6	Year 7	Year 8	Year 9	Year 10	Year 11-14	Year 15-19	Year 20+
2024	\$59,254	\$60,884	\$62,558	\$64,279	\$66,046	\$67,863	\$69,729	\$71,646	\$73,617	\$75,641	\$76,691	\$77,091	\$77,291
2025	\$61,032	\$62,710	\$64,435	\$66,207	\$68,028	\$69,898	\$71,821	\$73,796	\$75,825	\$77,910	\$78,960	\$79,360	\$79,560
2026	\$62,253	\$63,965	\$65,724	\$67,531	\$69,388	\$71,296	\$73,257	\$75,272	\$77,342	\$79,468	\$80,518	\$80,918	\$81,118

Maintenance Worker II

	Step												
	A	B	C	D	E	F	G	H	I	J	K	L	M
	Year 1	Year 2	Year 3	Year 4	Year 5	Year 6	Year 7	Year 8	Year 9	Year 10	Year 11-14	Year 15-19	Year 20+
2024	\$ 65,324	\$ 67,120	\$ 68,966	\$ 70,863	\$ 72,811	\$ 74,814	\$ 76,871	\$ 78,985	\$ 81,157	\$ 83,389	\$ 84,439	\$ 84,839	\$ 85,039
2025	\$ 67,284	\$ 69,134	\$ 71,035	\$ 72,988	\$ 74,996	\$ 77,058	\$ 79,177	\$ 81,355	\$ 83,592	\$ 85,891	\$ 86,941	\$ 87,341	\$ 87,541
2026	\$ 68,629	\$ 70,517	\$ 72,456	\$ 74,448	\$ 76,496	\$ 78,599	\$ 80,761	\$ 82,982	\$ 85,264	\$ 87,608	\$ 88,638	\$ 89,038	\$ 89,238

Re: Letter of Understanding on Morning Coffee

During the negotiations leading to the 2023-2027 collective bargaining agreement, the City and the Union negotiating teams discussed the drinking of beverages during the morning work hours. This letter summarizes our understanding on that subject.

The guiding principle is that there is no morning rest period and that public perception of the activities of public works employees is important. It is also recognized that it is desirable for employees to be able to drink a beverage (soft drinks or coffee) during the morning work hours, without taking a break, so long as this activity is not an organized group activity. This means that if an employee desires to drink a beverage during the morning work hours, that employee is required to bring the beverage to work at the beginning of the shift and the employee is permitted to consume that beverage during the morning work hours, but without taking a morning rest period. Employees are not permitted to stop at restaurants, drive-in or other, in order to obtain beverages during work hours, except that one (1) employee per crew may be permitted to go to a local restaurant or convenience store in the morning to get refreshments. If an employee is working in the Public Works yard area, it is permissible for that employee to purchase beverages from the on-site vending machines for consumption during the morning work hours.

Neither the City nor the Union wants supervisors to be required to police the understanding set forth in this letter; this puts a good-faith and common sense obligation on the employees themselves.

This letter of understanding shall be in effect for the duration of the 2023-2027 collective bargaining agreement. If this letter correctly reflects our understanding, please sign below.

INTERNATIONAL UNION OF OPERATING
ENGINEERS, LOCAL 150

CITY OF PARK RIDGE

By Deanka M. Distard

By [Signature]

Dated: 7/17/2024

Dated: 8/9/2024

Re: Letter of Understanding on Sibley Lift Station

This is an informal understanding between the Union and the City, which shall not be considered a part of the collective bargaining agreement. During the remaining term of the 2023-2027 collective bargaining agreement between the parties, the City will make every effort to contract out cleaning of the Sibley Lift Station. In the event the City is unable to contract out such work or in the event circumstances require immediate action, the City may assign bargaining unit employees to perform such work. If the City assigns bargaining unit employees to clean the Sibley Lift Station under such circumstances, crews shall be selected from a volunteer list or, if not enough volunteers exist, then by reverse seniority. If bargaining unit employees are assigned to perform such work: 1) the City shall test the air and sediment at Sibley Lift Station, through an independent licensed lab, and a copy of the test results will be posted at the 400 Busse City facility; 2) Any necessary safety equipment shall be provided by the City, at no cost to the employees; and 3) employees required to clean the Sibley Lift Station will be paid for hours spent performing such work at the rate of time and one-half.

This letter of understanding shall be in effect for the remaining term of the 2023-2027 collective bargaining agreement. If this letter correctly reflects our understanding, please sign below.

INTERNATIONAL UNION OF OPERATING
ENGINEERS, LOCAL 150

CITY OF PARK RIDGE

By Deanna M. Distasio

Dated: 7/17/2024

By [Signature]

Dated: 8/9/2024

MEMORANDUM OF UNDERSTANDING

Between the
City of Park Ridge
and
IUOE Local 150

This is a Memorandum of Understanding ("MOU") between the City of Park Ridge ("City") and IUOE Local 150 ("Union"). The MOU has been developed as a result of mutual agreement between the City and the Union under the collective bargaining agreement expiring April 30, 2027. The terms of the MOU are as follows as it relates to Article VII, Hours of Work and Overtime, Section B:

1. During the term of this MOU, when the Public Works Director determines there is overtime work to be performed, bargaining unit personnel shall be offered the first opportunities to work overtime, except for in an emergency as determined by the Public Works Director or the Mayor, and/or for work of a *de minimus* nature by any City employee already present at work. However, if the bargaining unit personnel refuses the work or is unavailable, the City may work part-time, temporary or other non-bargaining unit personnel without violating the Agreement. The Public Works Director has disseminated the current Public Works Callout List, which may be changed from time to time by the Director with notice to the Union, that shall be used for purposes of this MOU.

2. Nothing herein is intended nor shall be construed to limit the City's right to contract out for goods and services.

3. The Union has the right to grieve a violation of this MOU.

4. This MOU shall be attached to the collective bargaining agreement expiring April 30, 2027. The MOU shall be considered non-precedential in all respects and it may only be introduced as evidence in an arbitration to enforce its terms. Unless mutually agreed by the parties, the MOU shall expire and shall be of no force or effect upon execution of a successor collective bargaining agreement.

By: CITY OF PARK RIDGE



Date: 08/09/2024

IUOE, LOCAL 150



6/10/2024